Edgemont AI Policy: Data and Student Privacy Passages

Excerpted verbatim from *Policy 8636 – Artificial Intelligence (Edgemont Union Free School District, New York; adopted April 22, 2025)*. Page numbers refer to the PDF pages of the source file. Ellipses (…) mark omitted text. The numbered list in the Data Privacy and Security section is shown as bullets.

Scope and Application (excerpt)

Source: PDF page 2

This policy applies to all Edgemont students, personnel, volunteers, and contractors. It integrates with, and complements, existing policies on data privacy, acceptable use, and student conduct.

This policy aims to provide clear guidelines on the use of AI within Edgemont schools and programs, ensuring that its application supports educational goals and adheres to privacy and security standards.

Data Privacy and Security

Source: PDF pages 3–4

Information entered into GenAI may be accessible to others due to data sharing or breaches. All users should exercise caution when utilizing GenAI. Under no circumstances should any sensitive, copyrighted, confidential, or proprietary information be entered into GenAI or any other AI platform, consistent with relevant state and federal laws and district policy. This includes, but is not limited to, data protected by:

- Family Educational Rights and Privacy Act (FERPA);
- Education Law Section 2-d (Unauthorized Release of Personally Identifiable Information);
- Labor Law Section 203-d (Employee Personal Identifying Information);
- State Technology Law Section 208 (Notification of Security Breach of Private Information).

Further, if the information would not be disclosed in response to a Freedom of Information Law (FOIL) request, it should not be entered into GenAI.

Compliance with Other Documents

Source: PDF page 5

When using GenAI, all personnel and students must comply with all applicable laws, regulations, and district documents. This includes Education Law Section 2-d, which requires the district to ensure that whenever it enters into a contract or other written agreement with a third- party contractor under which the third-party contractor will receive student data or teacher or principal data from the district, the contract or written agreement will include provisions requiring that confidentiality of shared student data or teacher or principal data be maintained in accordance with law, regulation, and district policy. Applicable district documents may include policies on data security and acceptable use, as well as the district's Code of Conduct.

Ref:

- 7160 Family Educational Rights And Privacy Act Protection Of Pupil Rights Amendment

- 8625 Privacy and Security for Student, Teacher, and Principal Data
- 8635 Information Security Breach and Notification